

22STCP00098 22STCP00098

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Case Number: 22STCP00098 Hearing Date: September 8, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: September 8, 2026

Case Name: Albertoni v. LAUSD, et al.

Case No.: 22STCP00098

Matter: Motion for Summary Judgment/Adjudication

Moving Party: Defendant LAUSD

Responding Party: Plaintiff Diane Albertoni

Notice: OK

Ruling: The Motion for Summary Judgment is granted.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA

CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On June 20, 2024, Plaintiff Diane Albertoni filed the operative Third Amended Complaint ("TAC"), which alleges what appears to be twelve causes of action for FEHA failure to provide reasonable accommodations and failure to engage in the interactive process against Defendant LAUSD. On August 26, 2024, the Court ruled: "The TAC's labels are not determinative. Although the labels indicate the existence of twelve causes of action, there are only two causes of actions pleaded: (a) failure to engage in the interactive process and (b) failure to provide reasonable accommodations. The TAC is deemed to assert only two causes of action."

Defendant now seeks summary judgment or, alternatively, summary adjudication of all causes of action.

The law of summary judgment provides courts "a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) In reviewing a motion for summary judgment or adjudication, courts employ a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.) The moving party bears the initial burden of production to make a prima facie showing of the nonexistence of any triable issue, in which case the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue. (Code Civ. Proc. § 437c(p)(2).) To show a triable issue of material fact exists, the opposing party may not rely on the mere allegations or denials of the pleadings, but instead must set forth the specific facts showing that a triable issue exists as to that cause of action or a defense thereto. (Aguilar, at p. 849.) Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

To prevail on either cause of action, Plaintiff must establish as a threshold matter that she suffered from a qualifying disability known to the employer. (Gov. Code § 12926(j); Gelfo v. Lockheed Martin Corp. (2006) 140 Cal.App.4th 34, 48.)

Defendant met its initial burden by presenting undisputed evidence that Plaintiff's 2021 accommodation request relied upon an unauthenticated note from a nutritionist (Dr. Blumenkrantz) stating generalized conditions. In deposition, Dr. Blumenkrantz denied signing the note, maintained no record of it, and could not identify any factual basis or diagnosis supporting physical limitations or severe immunosuppression. Furthermore, Plaintiff admitted in deposition that she lacked knowledge of any underlying medical condition justifying a remote work restriction at the time of her request. (See Defendant's Exhibit 5 ["Q. In other words, is there any medical condition that you had in April of 2021 that formed the basis of your request to work remotely, for example, had you been diagnosed with something else where you said, you know, that is a reason why I should work from home? A. I don't remember. Q. At the time in April of 2021 were you treating for any other conditions? A. I don't remember."].)

In opposition, Plaintiff submits a self-serving declaration alleging worry and anxiety regarding COVID-19 exposure at her school site, as well as a 2024 billing receipt referencing a PTSD diagnosis code. Subjective fear of illness does not constitute a qualifying physical disability under FEHA without admissible medical evidence of an actual physiological disorder or condition that limits a major life activity. (Allos v. Poway Unified Sch. Dist. (2025) 112 Cal.App.5th 822, 836–837; Hodges v. Cedars-Sinai Med. Ctr. (2023) 91 Cal.App.5th 894, 908–910.)

As to the reference to PTSD, a billing entry from 2024 does not establish that Plaintiff suffered from a qualifying disability in 2021 when the interactive process occurred and the accommodation request was evaluated. Under FEHA, liability depends on what the employer knew and the information provided at the time of the accommodation decision.

Moreover, a diagnostic billing code on a receipt or invoice is not an expert medical opinion. Without a supporting declaration or sworn testimony from a qualified medical provider explaining the diagnosis, its clinical basis, and specific functional limitations, a raw billing code is inadmissible hearsay for the truth of the diagnosis.

Because Plaintiff failed to show triable issues as to whether she suffered an underlying disability, the Motion for Summary Judgment is granted. The objections to the evidence discussed herein are sustained; all other objections are overruled as immaterial.

Moving party to give notice.